Thus, the Constitution has assigned a dual role to the office of a governor in the Indian federal system. He/she is the constitutional head of the state as well as the representative of the Centre (i.e., President).

ISSUES IN THE GOVERNOR'S FUNCTIONING

The Sarkaria Co mmission on Centre-State Relations (1983–88) identified various issues in the functioning of the Governor. These issues are continuing and relevant even today. The Commission has explained them in the following way:

1. **In Choosing Chief Minister:** Soon after an election when a single party or a coalition emerges as the largest single party or group, there is no difficulty in the selection and appointment of a Chief Minister. However, where no single party or group command absolute majority, the Governor has to exercise his discretion in the selection of Chief Minister. In such a situation, the leader of the party or group which, in so far as the Governor is able to ascertain, has the largest support in the Legislative Assembly, may be called upon to form the Government, leaving it to the Assembly to determine the question of confidence. This procedure leaves little scope for any allegation of unfairness or partisanship on the part of the Governor in the use of his discretion. Such a situation may also arise when a Ministry resigns after being defeated in the Assembly or because it finds itself in a minority.

2. **In Testing Majority:** The Governors have employed various ways to determine which party or group is likely to command a majority in the Legislative Assembly. Some have relied only on lists of supporters of rival claimants produced before them. In other cases, physical verification by counting heads was carried out.

3. **In Dismissal of Chief Minister:** There has been no uniformity in regard to the criteria adopted for dismissal of a Chief Minister. Obviously, a Chief Minister cannot continue in office after he ceases to command a majority in the Legislative Assembly. It is normal for a Chief Minister to resign immediately or face the Legislative Assembly to prove that he continues to enjoy majority support.

4. **In Dissolving the Legislative Assembly:** Various Governors have adopted different approaches in similar situations in regard to dissolution of the Legislative Assembly. The advice of a Chief Minister, enjoying majority support in the Assembly, is normally binding on the Governor. However, where the Chief Minister had lost such support, some Governors refused to dissolve the Legislative Assembly on his advice, while others in similar situations, accepted his advice, and dissolved the Assembly.

5. **In Recommending President's Rule:** In a number of situations of political instability in the States, the Governors recommended President's rule under Article 356 without exhausting all possible steps under the Constitution to induct or maintain a stable government. The Governors concerned neither gave a fair chance to contending parties to form a Ministry, nor allowed a fresh appeal to the electorate after dissolving the Legislative Assembly. Almost all these cases have been criticised on the ground that the Governors, while making their recommendations to the President, behaved in a partisan manner. Further, there has been no uniformity of approach in such situations.